

based on allegations of abuse.

Mandatory Reporting Duties

Plaintiff points out in opposition that the County's demurrer must fail "because Plaintiff sufficiently alleges breaches of mandatory duties for which there is no immunity." (Opp. at 11:19-20 citing *Holman v. County of Butte* (2025) 111 Cal.App.5th 177, Govt Code § 815.6.) The Complaint **does** specifically allege a basis of liability against the County under California Government Code section 815.6. (§§ 56-57, 69.) Section 815.6 states:

"Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty."

The Complaint alleges several alleged mandatory duties which were allegedly not complied with. (§§ 23, 46, 57.)

The County does not address this alleged basis for liability in its demurrer. As the County's notice indicates, it demurred "on the ground that discretionary immunity under Government Code section 820.2 bars Plaintiff's negligence claim against the County." The negligence claim, however, is based on both alleged discretionary actions as well as alleged violations of mandatory duties. The County does not demur to the alleged violations of mandatory duties as a basis for the negligence claim. It does not discuss liability under section 815.6 at all – not even in reply.

"A demurrer does not lie to a portion of a cause of action." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682.) "A demurrer must dispose of an entire cause of action to be sustained." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) To the extent the County is claiming that the allegations do not support a 'negligence' cause of action, if "the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against the demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The County also appears to argue that the holding in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 controls and does not allow for liability for violation of mandatory reporting duties under section 815.6. The *K.C.* court, however, did not address that issue. There were no discussions of section 815.6, nor any allegations of violations of mandatory reporting violations.

"An opinion is not authority for a point not raised, considered, or resolved therein." (*In re T.C.* (2012) 210 Cal.App.4th 1430, 1433 quoting *Styne v. Stevens* (2001) 26 Cal.4th 42, 57.)

Conclusion

The County's demurrer to the Complaint is **OVERRULED**.

CASE NAME: ALEXANDER DURAN VS. JUDY BROWN
HEARING ON DEMURRER TO: COMPLAINT BY TAYLOR KAMMEIER
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by cross-defendant, Taylor Kammeier, who is in pro per. Kammeier demurs to the cross-complaint by Walnut Park WC HOA ("HOA") pursuant to Code of Civil Procedure sections 430.10 (e), (f), and (g).

The demurrer is **OVERRULED**, as discussed below. Kammeier shall file an answer to the cross-complaint on or before June 18, 2026.

1. Background

The cross-complaint targeted by Kammeier's demurrer was filed by the HOA in response to the original complaint by plaintiff, Alexander Duran. In his complaint, filed February 2, 2025, Duran alleges that Simin Vasseghi, the owner of Unit 95, noticed water dripping and notified Duran, who was the tenant of Unit 96 at the time (in February 2022). Duran then verified the leak and reported it to the property manager, defendant Judy Brown. Brown hired Kammeier to perform repairs. (Duran's Complaint, ¶¶12-16.) On March 1, 2022, Kammeier attempted to repair the leak in Unit 96, finishing at approximately 4:00 p.m. and then moving on to do further work in Unit 95, owned by defendant Vasseghi. (*Id.* at ¶¶17-20.)

Vasseghi later sued Kammeier, the HOA, Brown (the property manager), and the owners of Duran's Unit (defendants Seo and Lee) for negligence in Contra Costa County Superior Court Case No. C22-02678, alleging that Kammeier was unlicensed, performed work (including removing wall tiles to expose piping) against her wishes, and negligently started a fire in her bathroom. (Contra Costa County Superior Court Case No. C22-02678, Complaint filed 12/16/22, ¶¶15-29.) Duran's landlords (Seo and Lee) filed a cross-complaint naming Kammeier. Kammeier was dismissed with prejudice by Vasseghi on October 8, 2024. Seo and Lee also dismissed their cross-complaint with prejudice in December of 2024.

On February 2, 2025, Duran brought the present action against his landlords, the property manager, the HOA, Vasseghi, and Kammeier. He claims damages for loss of personal property. (Duran's Complaint, ¶30.)

On January 1, 2026, the HOA filed its cross-complaint against Kammeier and others. The cross-complaint, which incorporates plaintiff's original complaint herein, seeks indemnity, apportionment of fault, and declaratory relief. Kammeier responded by filing this demurrer.

As to the principal complaint, Duran took Kammeier's default on May 26, 2026.

2. Meet and Confer / Order to File Signed Declaration

The declaration in support of the demurrer is insufficient.

Aside from being unsigned, the declaration fails to set forth compliant meet and confer efforts. Kammeier failed to engage in such efforts "in person, by telephone, or by video conference." (Code Civ. Proc., §430.41(a).) However, failure to meet and confer in compliance with the statute is not a permissible basis for either sustaining or overruling a demurrer. While the HOA notes the problem (Memorandum of Points and Authorities in Support of Opposition, 3:13-16), it does not oppose on the basis that the efforts were insufficient. Given the improbability that meeting and

conferring in the correct format would change the results here, the Court proceeds with its ruling.

Because “[a]n unsigned paper *shall* be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party” (Code Civ. Proc., § 128.7 (a), emphasis added), Kammeier is directed to promptly file a declaration that is captioned, “Amended Declaration in Support of Demurrer,” (for ease of filing) that sets forth the same facts, but includes a signature.

3. Request for Judicial Notice

Kammeier requests judicial notice of the dismissal filed in the previous action, Contra Costa County Superior Court Case No. C22-02678. The request is unopposed and is **GRANTED**.

4. Legal Standard

A court assessing a demurrer accepts as true the facts pleaded in the complaint, but rejects contentions, deductions and conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966–967.) The Court gives the complaint a reasonable interpretation, reading it as a whole and its parts in their context. (*Blank, supra*, 39 Cal.3d 311, 318.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.) In ruling on a demurrer, the court considers the face of the pleading attacked and matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

5. Discussion

Kammeier demurs on the grounds that the cross-complaint is barred by res judicata because a final judgment was entered in the first case. In a related argument, he contends that there is no derivative indemnity liability since the underlying claim was extinguished.

The arguments lack merit despite Kammeier’s correct observation that the alleged liability arises from the same transaction. The HOA’s arguments in opposition are also correct. These include that the elements of claim and issue preclusion are not satisfied here.

The prerequisite elements for applying the doctrine of preclusion to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding. (*State Comp. Ins. Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 446-447.) Claim preclusion prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them. (*Id.*) Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. *Id.* If claim preclusion is established, it operates to bar relitigation of the claim altogether. (*Id.*) Issue preclusion prohibits the relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. (*Id.*)

As applied here, the third element of claim preclusion is not satisfied. The HOA never filed any claim against Krammier in the first suit. Additionally, the plaintiff in the second suit, Duran, was not a party to the first. While Duran’s landlords *were* parties in the first suit, *their* dismissal of a cross-complaint against Kammeier would not necessarily bar the HOA’s claim for indemnity with respect to Duran’s claim. The parties and issues are therefore different such that claim preclusion does not apply

(at least on demurrer).

Issue preclusion applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. (*State Comp. Ins. Fund, supra*, 50 Cal.App.5th 422, 447-448.) Here, the elements are not satisfied. The issue here is damage to the personal property of Duran, who did not assert any claims in the first suit. Accordingly, the issue is not identical to any issue that could have been present in the first suit. As to the third element, no issues in that case were “actually litigated” given the dismissal relatively early in the proceedings. The issue must have been actually litigated and determined in the first action, a standard not satisfied by a dismissal with prejudice. (*Tukes v. Richard* (2022) 81 Cal.App.5th 1, 22.) Accordingly, issue preclusion also does not apply.

With respect to comparative indemnity, Kammeier correctly points out that a loss is necessary for the cause of action to accrue (e.g., payment of either a judgment or settlement). Still, the effect of this rule is that the statute of limitations does not begin to run until the time of loss. (Code Civ. Proc., § 312 [civil actions can only be commenced after cause of action accrues]; see also *Valley Circle Estates v. Vtn Consol.* (1983) 33 Cal.3d 604, 612 [indemnity cause of action does not accrue until he has suffered actual loss].) This undermines the demurrer’s statute of limitations argument.

Arguably, the point also suggests the cross-action is premature here. However, courts generally allow cross-complaints to be filed within the plaintiff’s primary case where the cross-complaints seek declaratory relief concerning indemnity for any judgment that *may* be rendered on plaintiff’s complaint. (*Shepard & Morgan v. Lee & Daniel, Inc.* (1982) 31 Cal.3d 256, 261 [“Overburdened courts gain nothing from a rule which would discourage the filing of cross-actions in favor of independent actions” and this process represents a more orderly and expeditious resolution of the controversy in multiple party cases].) This is true even where plaintiff may be barred from suit by the statute of limitations. (*Valley Circle Estates, supra*, 33 Cal.3d at 611.)

As to Kammeier’s demurrer pursuant to Code of Civil Procedure, § 430.10 (e) and (g) (respectively pertaining to uncertainty and inability to determine whether a contract is written, oral, or implied), these grounds are essentially unsupported by any argument. The Court construes this as an admission on Kammeier’s part that these are not grounds on which the Court can sustain the demurrer. (See Rule of Court 3.1113(a) [court may treat the absence of a memorandum as a waiver of all grounds not supported].)

In any event, uncertainty is a disfavored ground for sustaining a demurrer, and a demurrer for uncertainty will be sustained only when the pleading is such that the responding party cannot even discern what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.) A complaint or cross-complaint must simply contain a statement of the facts constituting the cause of action, in ordinary and concise language. (Code Civ. Proc., § 425.10 (a).) Here, the cross-complaint meets that low bar. The Court expects that any lingering issues can be illuminated through discovery. (*Khoury v. Maly’s of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616 [“demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures”].)

14. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA